IN RE: NTHUTSUKO MUSUTHELO JC 10/20

HIGH COURT OF ZIMBABWE
TSANGA J
HARARE; 7 July 2026

Civil Review (Children's Court)

TSANGA J

This record which has been placed before me for review and confirmation, concerns an application for the continued placement of a child in care. Upon considering the report filed by the Social Welfare Officer, I noted as a reviewing Judge, an obvious inconsistency regarding the child's sex. While the Social Welfare officer's report identifies the child as female in its heading, the narrative repeatedly refers to the child as "him" and as a "male child." During the hearing before the Magistrate, the Social Welfare Officer referred to the child as "she," consistent only with the identifying particulars recorded in the heading of the report. Yet the child seems male from the detailed narrative.

A child's sex, whether male or female, is an important identifying particular and must be accurately and consistently recorded in all reports and court records. Such particulars are not mere formalities. They assist in ensuring that court orders relate to the correct child, preserve the integrity of the record, promote confidence in the accuracy of the social inquiry, and uphold the child's dignity and identity.

Where an inconsistency of this nature is apparent on the face of the record, the proper course is for the magistrate making the enquiry for purposes of confirming the placement, to seek clarification before determining the application. If the inconsistency arises from a clerical or typographical error, the Social Welfare Officer should be asked to correct the report, or the correction should be formally noted on the record before the Court proceeds.

Although I am satisfied that the discrepancy in the present matter appears to have been a drafting error rather than evidence of uncertainty as to the identity of the child, it was nevertheless inappropriate for the inconsistency to remain unaddressed. There are many such

reports where magistrates appear not to be concerned with the careless interchange of he and she.

Courts dealing with matters affecting children must insist upon accuracy in documents placed before them, as these records may be relied upon in future proceedings concerning the same child. For the guidance of Social Welfare Officers and magistrates, reports concerning children should be carefully checked before filing, and any apparent inconsistency concerning the child's identity or other material particulars should be corrected before an order is made. Such practice promotes the proper administration of justice and serves the best interests of the child.

I further observed inconsistencies in the spelling of the child's name. The Social Welfare Officer's report identifies the child as **Nthutsuko**, and that spelling is used throughout most of the report. However, in the paragraph dealing with the child's education, the name appears as **Ntutsuko**. The inconsistency is compounded by the Review Cover, on which the learned magistrate records the child's name as **Ntuntukho**. While these variations may be attributable to clerical or typographical errors, they concern a fundamental identifying particular of the child and should not be dismissed as inconsequential. A child's name must be recorded accurately and consistently in all reports, court records and orders. Care should be taken to verify the correct spelling from the child's official documentation or other reliable records before documents are filed or transmitted for review. Accurate recording of a child's name safeguards the integrity of the court record, avoids uncertainty in future proceedings, and demonstrates the care that matters affecting children demand.

I also consider it necessary to emphasise the responsibility of magistrates to ensure that all documents transmitted for review are complete, legible, and of sufficient quality to permit proper judicial scrutiny. The review process depends entirely upon the record placed before the reviewing court. Documents that are partially copied, contain cut-off text, are faint, or are otherwise illegible impede the Court's ability to discharge its review function effectively and may obscure material facts or defects in the proceedings. In the present matter, portions of the Social Welfare Officer's report had been copied in a manner that cut off parts of the text, yet the record was nevertheless forwarded for review without the defect being remedied. Such practice is unsatisfactory. Before transmitting a record for review, magistrates should satisfy themselves that all documents are complete, legible, and accurately

reproduced so that the reviewing court is able to consider the matter on the basis of a full and reliable record.

In the result, the record is remitted to the learned magistrate with a direction that the identified anomalies be attended to before the matter is resubmitted for review. In particular, the Social Welfare Officer shall correct the report to ensure that the child's identifying particulars, including the child's sex and the spelling of the child's name, are accurately and consistently reflected throughout. The magistrate shall likewise ensure that the Review Cover and all other court documents correctly record the child's identifying particulars and that the record transmitted for review is complete, legible, and accurately reproduced. Upon rectification of these matters, the record shall be resubmitted for review without undue delay.

This judgement should also be circulated to all Magistrates through the Chief Magistrate, and, the appropriate authority at the Department of Social Welfare for guidance and circulation amongst social welfare officers regarding the court's concerns with these types of errors in their reports.

TSANGA J: ……